



File No.: EXP202308427

RESOLUTION OF

PROCEEDING OF WARNING

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 14, 2023, a complaint was filed with the Spanish Agency for Data Protection regarding a possible infringement attributable to A.A.A. with NIF ***NIF.1 (hereinafter, A.A.A. or the complained party).

The facts brought to the attention of this authority in the aforementioned complaint were as follows: The complaining party stated that the complained party had installed cameras on the property located at ***ADDRESS.1, capable of capturing images of areas outside the aforementioned property, specifically, of the neighboring property belonging to the father of the complaining party, located at ***ADDRESS.2, including the entrance and the existing dwelling.

Furthermore, the cameras are not marked with the required informational signs for the monitored area. The complaint includes images showing the location of the said cameras, dated June 12, 2023. In these images, three cameras can be seen on the exterior facade of an agricultural building and on posts near metal fences bordering the mentioned property, as well as the path leading to it and other neighboring properties.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on June 19, 2023, the complaint was forwarded to A.A.A. for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified on June 27, 2023, as recorded in the acknowledgment of receipt in the file.

On August 8, 2023, a response was received by this Agency indicating that the complained party is responsible for the operation of the video surveillance system at ***ADDRESS.1, which comprises three cameras that do not capture images of the adjacent public road or neighboring properties, operating within the family and domestic sphere, and therefore no sign has been placed to indicate them. Attached to the response were images captured by these cameras.

Upon analyzing the aforementioned documentation, it should be noted that the provided images are of very low quality and do not allow for an assessment of the field of vision of these devices, making it impossible to determine whether or not they capture areas outside the mentioned property, as in some images it appears that they might capture through the metal fences delimiting the property, as they are not opaque. Moreover, in one of them, identified as Pozo2 Camino, it appears that a path is captured behind the metal fence.

Therefore, on September 13, 2023, the complained party was requested to provide, within 5 working days, new images of the area captured by the cameras, with sufficient clarity to evaluate whether the image processing is indeed domestic or if it captures third-party properties.

THIRD: On September 18, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complaining party was admitted for processing.

FOURTH: On October 6, 2023, a response to the request made to the complained party was received by the Agency, with the new images provided not having better definition of what was captured by the said cameras, and indicating the following regarding the field of vision of the four installed cameras:

"Image No. 1: Pozo1_Entrada

The captured image shows on the left the field of a neighbor from whom nothing is captured as the line of existing trees obstructs the view.

The neighbor always has the option to put up a fence if they consider it necessary to limit the view.

The captured image shows on the right a path of my property.

Image No. 2: Nave 1

The fences shown are delimitations on my property for different uses.

Image No. 3: Nave 2

The fences shown are delimitations on my property for different uses.

Image No. 4: Pozo2_Camino

The captured image shows on the right the field of a neighbor from whom nothing is captured as the line of existing trees obstructs the view.

The neighbor always has the option to put up a fence if they consider it necessary to limit the view.

The captured image shows on the left a path of my property.”

FIFTH: On February 3, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the complained party for the alleged infringement of Articles 13 and 5.1.c) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified, respectively, in Article 83.5 of the GDPR.

SIXTH: The notification of the aforementioned agreement to initiate the warning procedure, which was carried out in accordance with the provisions established in the LPACAP, was notified on February 12, 2025, as recorded in the acknowledgment of receipt in the file.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/11

SEVENTH: Once the period granted for the submission of allegations by the respondent has elapsed, it has been confirmed that no allegations have been received from them.

In light of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: That in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data through the video surveillance system installed by the respondent, with 4 cameras capturing images on the property located at ***ADDRESS. The respondent carries out this activity in their capacity as the data controller, as they determine the purposes and means of such activity, pursuant to Article 4.7 of the GDPR.

SECOND: Despite the low quality of the images provided by the respondent, the images within the field of view of the installed cameras capture through the metal fences delimiting the property, both public space and adjacent properties, coinciding with what the respondent stated in the document submitted following the transfer action regarding the images captured by the cameras identified as Pozo1_Entrada (which shows the field of a neighbor on the left) and Pozo2_Camino (which shows the field of a neighbor on the right).

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, and 64.3 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

Considering the nature of the facts that have led to the proceedings and the concurrent circumstances, the present warning procedure is being conducted in accordance with the provisions of Article 64.3 of the LOPDGDD.

The procedure has a maximum duration of six months from the date of the initiation agreement. Upon the expiration of this period, it will become void, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

III

Preliminary Issues

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/11

The physical image of a person, in accordance with Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data, stating:

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction;” Images generated by a system of cameras or video cameras are personal data, and therefore their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of natural persons) carried out through the controversial video surveillance system complies with the provisions established in the GDPR and the LOPDGDD.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through systems of cameras or video cameras for the purpose of preserving the safety of persons and property, as well as their facilities. And Article 5.1 c) of the GDPR provides the following that personal data shall be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or these must be deleted. Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space. The installed cameras may not capture images of third-party private spaces and/or public spaces without duly justified and accredited cause. Therefore, the placement of cameras directed towards the private property of neighbors, affecting their private sphere without justified cause, is not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in those spaces. In some cases, to protect private spaces, it may be necessary to record a portion of the public road to ensure the security purpose. That is to say, the cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location.

And, in such an extraordinary case, the cameras may only capture the minimum necessary portion to preserve the safety of persons and property, as well as their

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/11

installations. In that case, the responsible party is obliged to display visible informational signs that provide the information required in Article 22.4 of the LOPDGDD.

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, which is acknowledged by the responding party, A.A.A., in its capacity as the data controller, as it determines the purposes and means of the installed video surveillance system, the collection and storage of images captured by the 4 cameras installed on the property of the responding party.

From the documentation provided in the file, it is established that the responding party has installed cameras that capture excessive footage, specifically of third-party properties (as acknowledged by the responding party) and of paths located behind the fences of the responding party's property, without there being visible informational signs that provide the information required in Article 22.4 of the LOPDGDD.

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their installations.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR:

"Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means."

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

4.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or installations.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording was obtained.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/11

5.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

It is also of interest, in cases of processing low-risk data, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows assessing the situation of the controller regarding the processing of personal data they carry out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

V

Unfulfilled obligation. Data minimization

Letter c) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

In the present case, from the documentation provided in the file, it is noted that the responding party has installed cameras that capture excessive footage, specifically of third-party properties, as acknowledged by the responding party regarding the images captured by the cameras identified by the responding party as Pozo1_Entrada (which shows to the left the field of a neighbor) and Pozo2_Camino (which shows to the right the field of a neighbor).

Consequently, it is considered that the known facts constitute an infringement, attributable to A.A.A., for violation of the previously transcribed article.

VI

Classification of the infringement of Article 5.1.c) of the GDPR and qualification for the purposes of prescription

The facts presented violate the provisions of Article 5.1.c) of the GDPR, which could constitute the commission of an infringement classified in Article 83.5 of the GDPR, which classifies as an administrative infringement the violation of the following articles, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
7/11

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Offenses, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute offenses, as well as those that are contrary to this organic law."

For the sole purposes of the statute of limitations, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious offenses and will be subject to a three-year statute of limitations for violations that constitute a substantial breach of the articles mentioned therein and, in particular, the following:
a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VII

Unfulfilled obligation. Information to be provided when personal data is obtained from the data subject
Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, under which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of them or the place where they have

been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and its rectification or erasure, or the restriction of its processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to that further processing, with information on that other purpose and any other relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

In this case, the respondent has installed cameras that carry out excessive capturing, specifically of third-party properties, without there being visible signs providing the information required under Article 22.4 of the LOPDGDD.

Consequently, it is considered that the known facts constitute an offense, attributable to A.A.A., for violation of the previously transcribed article.

VIII

Classification of the offense under Article 13 of the GDPR and qualification for statute of limitations
Article 83.5 of the GDPR classifies the violation of the following articles as an administrative offense, which shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"b) the rights of data subjects under Articles 12 to 22;"

For its part, the LOPDGDD in its Article 71, Offenses, states that:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
9/11

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law."

For the sole purpose of the statute of limitations, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

- h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law."

IX

Warning

In the event of an infringement of the provisions of the GDPR, without prejudice to the provisions of Article 83 of the GDPR, among the corrective powers available to the Spanish Data Protection Agency, as the supervisory authority, Article 58.2 of said Regulation includes the following:

"2 Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;."

Furthermore, Article 64 of the LOPDGDD, which regulates the "Initiation of the procedure and duration," states in its third paragraph:

"3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the proceedings shall be archived.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/11

In the present case, given the nature of the facts and circumstances outlined in the preceding Legal Grounds, it is deemed appropriate to issue a warning to A.A.A. for the infringement of the aforementioned articles.

X

Adoption of measures

As already indicated in the initiation agreement of this warning procedure, in accordance with the provisions of Article 58.2 d) of the GDPR, each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time frame..."

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as it is the controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

Consequently, A.A.A. is required to notify and prove to this Agency the adoption of the following measures within one month from the date this resolution of this warning procedure becomes final:

- Removal, or, if not possible, reorientation of the cameras located on the property of the complained party, aimed at the property of third parties and/or public space.
- Establishment of informative signs providing the information required in Article 22.4 of the LOPDGDD.

It is warned that failure to comply with this order to adopt measures imposed by this agency in the resolution of the present procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and the above, the Presidency of the Spanish

Data Protection Agency RESOLVES:

FIRST: TO ISSUE A WARNING to A.A.A., with NIF ***NIF.1, for the infringement of Articles 13 and 5.1.c) of the GDPR, classified, respectively, in Article 83.5 of the GDPR.

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, to prove compliance with:

- Removal, or, if not possible, reorientation of the cameras located on the property of the complained party, aimed at the property of third parties and/or public space.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/11

-

Establishment of informational posters providing the information required in Article 22.4 of the LOPDGDD.

THIRD: NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

1403-16012024

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es